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The Gazette of the Democratic Socialist Republic of Sri Lanka

අති විශේෂ EXTRAORDINARY

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No. 2063/21 - TUESDAY, MARCH 20, 2018

(Published by Authority)

PART I: SECTION (I) - GENERAL

Government Notifications

My No: IR/COM/03/W/2015/98.

THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON (1956 REVISED EDITION)

Order Under Section 4(1)

WHEREAS AN Industrial dispute in respect of the matter/ specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatta, Thalangama (On behalf of 04 Employees)
of the one part

And

Lanka Sugar Company (Pvt) Ltd, No. 27, Melbourne Avenue, Colombo 04, *of the other Part.*

NOW THEREFORE I, W.D.J.Seneviratne, Minister of Labour, Trade Union Relations and Sabaragamuwa Development do by virtue of the Powers vested in me by section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos.14 of 1957, 62 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act No. 37 of 1968 hereby appoint.

Mr. L.R. Sumathipala, Principal Quarters, Nursing Training School, Kandy. to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D.J. SENEVIRATNE,
Minister of Labour, Trade Union Relations and
Sabaragamuwa Development.

Colombo,
16th March, 2018.

My No.: IR/COM/03/W/2015/98.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatta, Thalangama (On behalf of 04 Employees) *of the one part*

And

Lanka Sugar Company (Pvt) Ltd, No. 27, Melbourne Avenue, Colombo 04, *of the other Part.*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

" Whether P.L.Gayan, H.M.M. Kumara, D.M.J. Bandara and J.N.S. Jayasinghe who worked as casual drivers of Lanka Sugar Company (Pvt) Ltd, for more than 20 years had been caused injustice by not being placed in permanent appointments and if so, to what reliefs they are entitled".

A. WIMALAWEERA,
Commissioner General of Labour.

Dated at the office of the Commissioner General of Labour,
Colombo,
27 th February, 2018.

04 - 156

My No.: IR/07/15/2013(A).

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order Under Section 4(1)

WHEREAS AN Industrial dispute in respect of the matter/ specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

The Ceylon Estate Staff's Union, No.06, Aloe Avenue, Colombo 03(On behalf of 04 Employees) *of the one part.*

And

Chilaw Plantations Limited, No. 165, Puttalam Road, Chilaw, *of the other Part.*

NOW THEREFORE I, W.D.J. Seneviratne, Minister of Labour, Trade Union Relations and Sabaragamuwa Development do by virtue of the powers vested in me by section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 62 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint.

Mr. Obadage Leelaratne, No. 242, Sri Sobhitha Mawatha, Nagoda, Kalutara. to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W.D.J.SENEVIRATNE,
Minister of Labour,
Trade Union Relations and Sabaragamuwa Development.

Colombo,
16th March, 2018.

My No: IR/07/15/2013(A).

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
1956 REVISED EDITION**

The Ceylon Estate Staff's Union, No. 06, Aloe Avenue, Colombo 03 (On behalf of 04 Employees) *of the one part*

And

Chilaw Plantations Limited, No. 165, Puttalam Road, Chilaw, *of the other Part.*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

" Whether B.M. Kanushka Tharindi, H.G.A.I. Prasadi, W.S.N. Surangika and W.J.R. Fernando, employees of Chilaw Plantations Limited not being absorbed into the Permanent cadre of the company after the training period of one year in accordance with the service conditions of their service agreement is just and if not so, to what reliefs they are entitled" .

A. WIMALAWEERA,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo,
27 th February, 2018.

04-157

My No: IR/07/15/2013(B).

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order Under Section 4(1)

WHEREAS AN Industrial dispute in respect of the matter/ specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

The Ceylon Estate Staff's Union, No. 06, Aloe Avenue, Colombo 03 (On behalf of 05 Employees) *of the one part*

And

Chilaw Plantations Limited, No. 165, Puttalam Road, Chilaw *of the other Part*

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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2018.03.20
PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 20.03.2018

NOW THEREFORE I, W.D.J. Seneviratne, Minister of Labour, Trade Union Relations and Sabaragamuwa Development do by virtue of the powers vested in me by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts Nos. 14 of 1957, 62 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint

Mr. Obadage Leelaratne, No. 242, Sri Sobhitha Mawatha, Nagoda, Kalutara. to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W.D.J. SENEVIRATNE,
Minister of Labour,
Trade Union Relations and Sabaragamuwa Development.

Colombo,
16th March, 2018.

My No: IR/07/15/2013(B).

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

The Ceylon Estate Staff's Union, No.06, Aloe Avenue, Colombo 03 (On behalf of 05 Employees) *of the one part*

And

Chilaw Plantations Limited, No. 165, Puttalam Road, Chilaw *of the other Part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

" Whether the non - backdating of the date on which M.V.D. Dilhani Sanjeevani, G.D. Apsarani Perera, T.M.M.R. Suwaris, L.S.L. Ranaweera and W.P. Lakshika Dilhani, employees of Chilaw Plantations Limited were absorbed into the permanent cadre of the company is just, and if not so, to what reliefs they are entitled"

A. WIMALAWEERA,
Commissioner General of Labour.

Dated at the Office Of the Commissioner General of Labour,
Colombo,
27 th February, 2018.

My No: IR/COM/01/E/2015/181.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order Under Section 4(1)

WHEREAS AN Industrial dispute in respect of the matter/ specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

01. Mr. K.K.Jayasena, No.19, 1 st Lane, Jambugasmulla Road, Nugegoda.
02. Mr. N.S.D. Nawaratne, 2nd Post, Malpandeniawatta, Buluruppa, Hettimulla.
03. Mr. U.K. Nanda, No.68, Isiwara place, Kurunduwatta, Walahanduwa *of the one Part*

And

Vocational Training Authority of Sri Lanka, No. 354/2, Nipunatha Piyasa, Elvitigala Mawatha, Narahenpita, Colombo 05.
of the other Part

NOW THEREFORE I, W.D.J. Seneviratne, Minister of Labour, Trade Union Relations and Sabaragamuwa Development do by virtue of the powers vested in me by section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 62 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint

Mr. R.S.Ariyapperuma, No. 03, Araliya Mawatha, Sirimal Uyana, Ratmalana. to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W.D.J.SENEVIRATNE,
Minister of Labour,
Trade Union Relations and Sabaragamuwa Development.

Colombo,
16th March, 2018.

My No: IR/COM/01/E/2015/181.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
1956 REVISED EDITION**

01. Mr. K.K.Jayasena, No.19, 1 st Lane, Jambugasmulla Road, Nugegoda.
02. Mr. N.S.D. Nawaratne, 2nd Post, Malpandeniawatta, Buluruppa, Hettimulla.
03. Mr. U.K. Nanda, No.68, Isiwara place, Kurunduwatta, Walahanduwa *of the one Part*

And

Vocational Training Authority of Sri Lanka, No. 354/2, Nipunatha Piyasa, Elvitigala Mawatha, Narahenpita, Colombo 05
of the other Part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

- " 1. Whether Mr. K.K. Jayasena who worked at the Vocational Training Authority of Sri Lanka and had faced the interview held in year 2014 for recruitment of officers to the post of Director General, Vocational Training Authority of Sri Lanka, had been caused injustice by not been given that post and if so, to what reliefs he is entitled.
2. Whether Mr. N.S.D. Nawaratne who works at the Vocational Training Authority of Sri Lanka and had faced the interview held in year 2014 for recruitment of officers to the post of Director (Planing, Research and Development) of the, Vocational Training Authority of Sri Lanka, had been caused injustice by not been given that post and if so, to what reliefs he is entitled.
3. Whether Mr. U.K. Nanda who works at the Vocational Training Authority of Sri Lanka and had faced the interview held in year 2014 for recruitment of officers to the posts of Director (Training), Director (Career Guidance, Placement and Special projects), and Director (Planning, Research and Development) of the Vocational Training Authority of Sri Lanka, had been caused injustice by not being given either of these posts and if so, to what reliefs he is entitled."

A. WIMALAWEERA,
Commissioner General of Labour.

Dated at the Office Of the Commissioner General of Labour,
Colombo,
27 th February, 2018.

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